

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

June 24, 2013

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Ms. Williams, and pursuant to support received by Ms. Broyles and Mr. Allen, agenda item #22(a) was removed from the Consent Agenda. Mr. Allen moved to approve remaining Consent Agenda items, seconded by Mr. Cook. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on June 10 , 2013. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Allen moved to approve payment of vouchers as presented, seconded by Ms. Williams. Upon inquiry, various City department heads provided information for their respective areas involving vouchers payable to the following: Wyoming State Bank (additional principal payment from excess escrow funds for sanitation lease/purchase equipment); Work Area Protections Corp. (traffic cones utilized for various Parks and Recreation events and road closures); Welding Shop (solid waste dumpster container repairs; stenciling, pickup and delivery); Waste Management (solid waste disposal fee for use of Ault, CO landfill); North Star Pharmacy (pharmaceutical drugs for Fire and Rescue Dept. advanced life services); Laramie County Clerk (resolution filing fee); Color Graphics (uniforms for recreational girls softball program included in registration fee) and AmeriMulch Dispersions LLC (dye to color wood chips (mulch) sold at Compost facility). Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers with the exception of Ms. Williams voting "no". Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mayor Kaysen opened a public hearing to receive comments and input pursuant to W.S. § 15-1-112(b), regarding a proposed trade of certain City-owned land generally described as Lots 30 and 31, Block 1, Eastridge Addition, to 19th & Converse, LLC, a Colorado limited liability company, in exchange for 9,504 square feet of land, being a portion of Lots 1 and 2, Block 1, Ruth Addition, to be acquired by the City for right-of-way purposes in connection with the reconstruction of the

Pershing Boulevard/Converse Avenue/19th Street intersections. Dan White, City Attorney, explained the purpose of trading property involves a proposed settlement of the eminent domain case filed by the City to acquire right-of-way at the former Hollywood Video business site for the round-about at the intersection. He provided information on the proposed trade involving lost parking spaces and assessed valuation of the properties, and stated it was anticipated that the settlement agreement would be introduced on the July 8th City Council meeting agenda. Upon inquiry, Mayor Kaysen advised the City has traded other properties several times in the past and the process is in compliance with state statute requirements; noted the trade is just one piece of the proposed settlement agreement and indicated that, upon approval of the settlement agreement by the parties involved, there would be no further action required regarding the eminent domain filing. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the hearing.

ORDINANCE - Amending Ordinance No. 3951 defining the terms and conditions of employment for non-uniformed employees of the City of Cheyenne. Reporting for Finance Committee, Mr. Brown moved to approve on third and final reading, seconded by Mr. Valdez. Motion carried. Voting "yes" -- all members of the governing body with the exception of Ms. Williams voting "no". (#3980)

ORDINANCE - Amending Ordinance No. 3952 defining the terms and conditions of employment for sworn officers of the City of Cheyenne Police Department. Mr. Brown moved to approve on third and final reading, seconded by Ms. Broyles. Upon inquiry, Mayor Kaysen advised police officers have the same option to participate in the City's wellness program as other employees. Motion carried. Voting "yes" -- all members of the governing body. (#3981)

ORDINANCE - Amending various sections within Chapter 5.68, Body Art Establishments and Operations, of Title 5, Business Licenses and Regulations, of the Cheyenne City Code to provide for a Body Art Special Event Business License and requirements for participating body artists and guest body artists. Gary Hickman, Cheyenne-Laramie County Health Department, advised the ordinance was prepared at the request of local body artists who would like the opportunity to hold special events in the community and to also allow non-local guest body artists to provide body art services in local shops. Mr. Brown moved to approve on second reading, seconded by Mr. Luna. Upon inquiry regarding whether any type of requirement for malpractice insurance should be considered relative to temporary body art services and protection to local customers, Mr. Hickman stated the ordinance does not require that type of coverage and no discussions on the topic have occurred, noting that other licenses, such as temporary food stands, do not have an insurance requirement. Carol Intlekofer, City Clerk, clarified the ordinance does provide for the applicant for the special license to serve as the contact person and they must provide a register, containing daily customer logs, from each body artist participating in the special event that will be kept on file with the Health Department for communication or contact purposes. Upon further inquiry, Dan White, City Attorney, stated wording in the ordinance requires proof of general liability coverage for any event held on City-owned property, which protects the interests of the City, and that they could look into professional malpractice insurance to see if it's even available and what the potential cost might be. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mr. Allen and Dr. Rinne voting "no".

ORDINANCE - Amending Chapter 5.08, Business License Fees, Section 5.08.250, Body Art Establishments and Operations -- Body Artists, of Title 5, Business Licenses and Regulations, of the Cheyenne City Code to implement a license fee for Body Art Special Events. Gary Hickman, Cheyenne-Laramie County Health Department, advised this is a companion ordinance to the previous one establishing a license fee for special body art events. Mr. Brown moved to approve on second reading, seconded by Mr. Luna. Comment followed on the proposed fee amount of \$100.00. Ms. Williams moved to amend the fee amount from \$100 to \$25. Motion died due to lack of a second. Upon inquiry, Mr. Hickman advised the Health Department will have a separate permit fee and Carol Intlekofer, City Clerk, explained the City's fee amount is to cover the cost of processing a business license application including, for this type of license, on-site inspections. Upon further inquiry, Ms. Intlekofer verified the applicant, or promoter, of a special event would have to pay any facility rental fees customarily assessed if, for example, the event venue would be held within a City-owned facility, and would need to acquire any other required City licenses or permits. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mr. Allen and Dr. Rinne voting "no".

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from LR-1 Low-Density Residential-Established to MUR Mixed-Use Residential Emphasis for the south ½ of Lots 8 and 9, Block 3, Yellowstone Addition, Cheyenne, Wyoming (located east of and adjacent to Yellowstone Road, between Dell Range Boulevard and Carroll Avenue). Ron Pinther, applicant requesting the zone change, read a Memo dated June 24, 2013 (on file with City Clerk's office) addressed to the Mayor and City Council members indicating neighbors have stated they will support a sign variance permitting a low-profile ground sign, approximately eight feet high and 22 sq. ft., zero to five feet from the right-of-way and two window decals 8½ x 5½ inches, and requesting the zone change ordinance be postponed until a final decision is made by the Board of Adjustment pursuant to his intention to submit a request for a sign variance by the Board. He reviewed his understanding of meeting dates pursuant to his request for postponement, noting the Board may make a final decision on his variance request at its August 15th meeting. Steve Oxley, stating he will be a resident in the zone change request area in the near future, confirmed he had no objection to Mr. Pinther seeking a sign variance instead of a zone change. Upon inquiry to Mr. Oxley and Kim Oxley regarding whether yellow (striped) parking space lines would be required for Mr. Pinther's property, utilized as a business office, as well as other businesses in the vicinity along Yellowstone Road, Mr. and Ms. Oxley responded they had no knowledge of requirements regarding striped parking lines. Mr. Allen raised a point of order stating he did not think it was proper to call upon members of the audience and cross examine them; that they should be able to make comments on their own if desired. Mayor Kaysen stated the form of questioning was a little off-target and recognized Matt Ashby, Planning Services Director, who provided information on the site plan process, which would include defining the location and number of parking spaces required for the area if the zone change is granted. He further explained parking requirements generally for home based businesses. Dr. Rinne raised a point of order that discussion should stay on track for the proposed postponement. Mayor Kaysen advised comments should remain germane to the topic before them. Rosalind Schliske, resident in the vicinity, commented on Mr. Pinther's request for postponement vs. a letter Mr. Pinther had circulated to the neighborhood indicating he would be withdrawing his request for a zone change. Mr. Allen raised a point of order

inquiring if there was any motion on the floor with Mayor Kaysen verifying no motion had yet been made and public discussion on the ordinance was being entertained. The following individuals spoke in opposition to the proposed zone change: Ms. Schliske, Cindy Paul, Birgette Paul, Mr. Oxley and Eugene Knipping. Topics discussed included: Spot zoning requests for business activities in Yellowstone Addition and past attempts for zone changes by the applicant; retaining the residential integrity of the neighborhood; traffic volume and parking concerns; active neighborhood support to keep the current zoning classification; concern with the types of business operations that could be allowed if the zone change were approved, and opposition to the zone change generally. Birgette Paul read a letter from neighborhood residents Brian and Kosha Olsen, who were unable to attend the meeting, expressing their support in keeping the neighborhood primarily residential in nature. Mr. Pinther provided a handout (on file with City Clerk's office) containing vicinity traffic counts and stated if the zone change were approved and at some point he didn't continue his business at the current location, he would request the zone be changed back to an LR-1. He clarified if his request for a sign variance is approved by the Board of Adjustment, he will withdraw his request for a zone change. Reporting for Public Services Committee, Mr. Allen advised there was no recommendation on the item from the Committee. Mr. Allen moved to approve on second reading, seconded by Ms. Williams. Mr. Allen moved to postpone to August 12, 2013, seconded by Mr. Shanor. Upon inquiry from Ms. Oxley and Cindy Paul, Mayor Kaysen provided general information on City Council meeting procedures regarding common actions that may involve amendments or postponements on agenda items, and reviewed the anticipated meeting schedule, if the motion to postpone was approved, relative to when the ordinance would be back before the governing body and Public Services Committee as well as the Board of Adjustment meeting schedule. Mr. Ashby provided information on the public notification process involved for Board of Adjustment meetings, and noted that within the home occupation standards and regulations essentially the allowance for signage is limited to one sign not more than three sq. ft. in area per home. He further advised the Board would be using review criteria to make their decision and evaluate the circumstances as well as any neighborhood feedback. Comments followed regarding past established custom of the governing body concerning postponements of agenda items beyond the next regularly scheduled City Council meeting vs. wording contained in Robert's Rules Of Order (RROO) indicating postponement can not extend past the next regularly scheduled meeting, and taking action on the ordinance at the current meeting instead of postponing the item. Mr. Allen raised a point of order questioning whether the motion to postpone past the next regularly scheduled City Council meeting was in order with Mayor Kaysen requesting Dan White, City Attorney, provide his legal interpretation of RROO on the subject. Mr. White expressed his belief that Mr. Allen's analysis of RROO was correct and that in the past City Council has postponed items for longer than the next meeting but RROO is clear that if a member of the City Council raises a point of order with respect to postponement of an item beyond the next regularly scheduled meeting then the custom that is currently employed by the City Council "falls to the ground" and the Council is required to abide by RROO. Mr. White advised the chair's (i.e. mayor's) role involving this point of order is to decide whether the point is well taken or not well taken in this particular instance. He explained if the chair's conclusion is that the point is well taken that means the motion to postpone to August 12th is not in proper order and theoretically should not be voted on, and if a motion to postpone is to be considered it should only be for a two week time frame and not to August 12th. Mayor Kaysen noted the point of order was well taken and the motion to postpone for more than two weeks was not in order, therefore, there would be no vote taken on the motion. Mayor Kaysen announced the main motion to approve on second reading was now the motion on the floor. Upon query to Mr. Pinther whether he wished to request a two week postponement or withdraw his current request for a zone change, Mr. Pinther advised he would like to withdraw the zone change request and go forward with seeking a sign

variance. Mr. Brown raised his objection to allowing the request for the zone change to be withdrawn by the applicant at this time and requested a vote on the main motion be taken. Mayor Kaysen stated that as an objection had been raised, the main motion was back on the floor. Upon inquiry, Mayor Kaysen advised that WYDOT has maintenance authority for this portion of Yellowstone Road (state highway) and determines any allowable on-street parking. Main motion to approve on second reading failed. Voting “no” -- all members of the governing body.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from CB Community Business to HI Heavy Industrial for Lot 3, Block 2, Campstool Addition, Second Filing, Cheyenne, Wyoming (located north of and adjacent to Hutchins Drive, west of Campstool Road). Mr. Allen moved to approve on second reading, seconded by Ms. Williams. Upon inquiry regarding EPA requirements for proposed use as an impound and truck washing facility, Steve Borin, property owner, clarified any user must comply with all requirements but advised this may be a moot point as the proposed property user may not proceed with development plans. He provided information on potential other uses of the property and advised he is still seeking the zone change. Comment followed on potential impact beyond the property line and fence screening contingent upon the type of property use. Motion carried. Voting “yes” -- all members of the governing body with the exception of Ms. Broyles voting “no”.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from CB Community Business to MUB Mixed Use Business Emphasis for Lots 1 through 4, Block 1, Cooley Subdivision, Cheyenne, Laramie County, Wyoming (located at the southwest corner of the intersection of Bluegrass Circle and Edgewater Avenue). Mr. Allen moved to approve on second reading, seconded by Mr. Shanor. Motion carried. Voting “yes” -- all members of the governing body.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from HI Heavy Industrial to CB Community Business for Lot 3, Block 1, Cheyenne Business Parkway, Cheyenne, Wyoming (located west of and adjacent to Progress Circle, north of Campstool Road -- referred to Public Services Committee (sponsor - Mr. Allen).

ORDINANCE - Amending the Cheyenne Unified Development Code (UDC), as approved by Ordinance No. 3943 on January 23, 2012, to adopt amendments identified as high priority quick fixes from the 2013 annual review -- referred to Public Services Committee (sponsor - Mr. Allen).

[CA] RESOLUTION - Authorizing the submission of a Business Ready Community, Downtown Development Grant Application to the Wyoming Business Council on behalf of the Governing Body of the City of Cheyenne for the Downtown Flood Control Project; Trunkline Interceptor. Motion (per Consent Agenda) carried. (#5499)

[CA] RESOLUTION - Authorizing the Mayor and City Clerk to sign a Final Plat for Cooley Subdivision, a replat of Lot 8, Block 8, Meadowbrooke Park, Cheyenne, Wyoming (located at the southwest corner of the intersection of Bluegrass Circle and Edgewater Avenue) -- referred to Public Services Committee (sponsor - Mr. Allen).

RESOLUTION - Authorizing the Mayor and City Clerk to enter into a Memorandum of Understanding with the Board of County Commissioners of Laramie County, Wyoming to submit a joint application for a grant award under the Edward Byrne Memorial Justice Assistance Grant Program -- referred to Finance Committee. Mr. Brown advised the item had been discussed under other items for the agenda at Finance Committee and provisions of Title 2 of City Code had been met. Mr. Brown moved to adopt, seconded by Mr. Valdez. Chief Brian Kozak, Police Department, advised this was reviewed under other items for the agenda at Finance Committee due to the grant application deadline of July 9, 2013. He explained they are requesting \$31,260.00 and, if the grant request is approved, the money would be used to purchase a "use of force" simulator for the City, and Laramie County would receive \$12,721.00 to purchase radios and personally worn cameras. Buck Holmes, Laramie County Commissioner, advised the County Commissioners have approved its portion of the related documents. Motion carried. Voting "yes" -- all members of the governing body. (Res. #5500/Contract #6021)

[CA] RESOLUTION - Supporting the City of Cheyenne's Application for Transportation Alternatives Program (TAP) funding for implementation of the Wayfinding Plan -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] RESOLUTION - Approving Outside User Water/Sewer Services, by User's Agreement, with C & S Halvorson, Lot 4, Energy Park One, Laramie County, Wyoming -- referred to Finance Committee (sponsor - Mr. Valdez).

Software Subscription Agreement between the City of Cheyenne, Special Projects/Parking Division, and T-2 Systems, Inc., Indianapolis, Indiana, for a parking enforcement software system with support maintenance. Bob Bradshaw, Special Projects Director, provided a summary of the purpose of and need to acquire the software system, stating the current software program is housed on the Division of Information Technology's mainframe computer for which operating system support will no longer be provided in September and that the current software (written in-house) is approximately 25 years old. He advised the system will also provide for 2 handheld devices with printer capability to be used by parking enforcement with information from the devices entered into the computer software program. Laura Lears, T-2 Systems, advised she was available to answer any questions regarding the software. Mr. Brown moved to approve in the amount of \$58,295.76, seconded by Mr. Valdez. Upon inquiry, Mr. Bradshaw advised the new software program with the handheld devices will be an obvious improvement over the current obsolete program; explained that funding for the system, including cost of initial maintenance was approved through a prior budget re-appropriation; advised of maintenance and program costs anticipated for and budgeted within the current budget, and reviewed numerous other entities that are utilizing the T-2 software system. He noted expenses to implement the system are anticipated to be lower than initially estimated. Upon further inquiry, Mr. Bradshaw cited his concern with regard to any delay in implementing the system by the September date when the maintenance for the mainframe will no longer be available, and provided information generally on the handheld devices relative to issuance of paper tickets and downloading of information into the software program, noting the change will not affect the Municipal Court process; lack of on-line payment capability, at least initially, due to security issues; training, and approved funding for the system. Motion carried. Voting "yes" -- all members of the governing body with the exception of Ms. Williams voting "no". (#6022)

[CA] Contract between the Wyoming Department of Family Services and the City of Cheyenne, Office of Youth Alternatives regarding the provision of Diversion Services. Motion (per Consent Agenda) carried (revenue to City - \$157,800.00). (#6023)

[CA] Amendment Number One to Contract No. 5867 between the City of Cheyenne, Office of Youth Alternatives, and Wyoming Department of Family Services regarding the provision of Prevention Services. Motion (per Consent Agenda) carried (revenue to City - \$178,756.00). (#6024)

[CA] Contract between City of Cheyenne, Engineering Department, and IMS Infrastructure Management Services, Tempe, Arizona, for pavement condition survey, assessment and inventory services (2011-2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Police Department, and Laramie County School District No. 1 for School Resource Officers, for the 2013 - 2014 school year -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Cheyenne Animal Shelter/Services for animal shelter services -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Cheyenne Animal Shelter/Services for animal control services -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Bill G. Hibbler for professional legal counsel assistance -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Cheyenne/Laramie County Corporation for Economic Development (LEADS) for industrial and economic development services -- referred to Finance Committee.

[CA] User Agreement between the City of Cheyenne, Parks and Recreation Department, and Cheyenne Stampede Junior "A" Hockey, LLC, to host the 2013-2014 season at the City-owned Ice and Events Center -- referred to Finance Committee.

[CA] Consideration of Bid #R-29-13 for furnishing 10 Police vehicles for the City of Cheyenne Police Department from Spradley Barr Motors, Cheyenne, Wyoming (State Loan & Investment Board funds, 2011 - 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-31-13 for furnishing two new mowers and one new utility cart for the Parks & Recreation Department, Grounds & Facilities Division (2011 - 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Restaurant liquor license application filed with the City Clerk's Office for Anong Larsen and Brett Larsen d/b/a Anong's Thai Cuisine, 620 Central Avenue, Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

Re-Appointments of Danny Glick, Jeff Lamm, Rick Robinson and Gay VanHorn to the Laramie County Community Juvenile Services Joint Powers Board; Dick O'Gara and John Sundahl

to the Downtown Development Authority Board; Mary Bienz, Dean Meyer, Scott Thomas and Robin Zimmer to the Public Transit Advisory Board. Mr. Allen moved to approve, seconded by Mr. Brown. Motion carried. Voting “yes” -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Appointments of Christopher Humphrey to the Laramie County Community Juvenile Services Joint Powers Board and Pat McGee and Hans Seitz to the Downtown Development Authority Board. Mr. Allen moved to approve, seconded by Ms. Williams. Motion carried. Voting “yes” -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Announcement was made of a Public Hearing to be held July 8, 2013 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, for a transfer of ownership and transfer of location for a retail liquor license application filed with the City Clerk’s Office for Safeway Stores 46, Inc. d/b/a Safeway Store #2975, 305 Cole Shopping Center, Cheyenne, Wyoming (License currently held by Lambousis Revocable Trust, 112 West 17th Street, Cheyenne, Wyoming).

Under other business, Ms. Broyles advised at the June 10, 2013 City Council meeting the motion to amend the City of Cheyenne’s sanitation fee schedule ordinance failed on 3rd and final reading and, having voted on the prevailing side and pursuant to Chapter 2.04 of City Code, she moved to reconsider the vote taken on the ordinance. Mr. Brown seconded the motion. Mayor Kaysen requested Carol Intlekofer, City Clerk, read the entitlement of the ordinance for the record, which was read as follows: An Ordinance -- 3rd Reading -- Amending the City of Cheyenne’s Sanitation Fee Schedule. Ms. Broyles explained that after reviewing additional information involving the ordinance and notes attached to the fee schedule that provide for clarification regarding policy and procedures, she was requesting support for the motion to reconsider. Vicki Nemecek, Assistant Public Works Director, provided an explanation of amendments that were approved prior to the final vote at the June 10th meeting. Motion to reconsider carried. Voting “yes” -- all members of the governing body. Mayor Kaysen advised the motion now on the floor was the main motion to approve the ordinance on third and final reading as twice amended at the June 10th meeting. Ms. Broyles moved to amend by substitute dated June 17, 2013, referencing an attached memo from Jim Elias, Director of Public Works, seconded by Dr. Rinne. Ms. Nemecek reviewed proposed changes contained in the substitute fee schedule and notes and also the two amendments that were approved at the last meeting included in the substitute. Upon inquiry, Ms. Nemecek provided information on billing procedures involving multiple businesses within one building and relationship to removing the last sentence in Note 2 pursuant to legal staff advice; cardboard dumpster fee change, and existing Note 3, which is not proposed for change. Motion to amend by substitute carried. Voting “yes” -- all members of the governing body. Comment followed on Note 3 which reads: “If material is left outside of containers (dumpsters) requiring manual pickup, the owner of the property may be assessed an additional cleanup fee for manpower and equipment time at a rate of \$25.00 per each 5 minute period or portion thereof.” Upon inquiry, Jim Elias, Public Works Director, advised typically the cleanup time is less than 5 minutes. He added careful consideration is given in assessing a fee over the 5 minute time frame and if it is a one-time situation a fee isn’t charged, but if it’s a repeat situation then the fee is charged. Ms. Broyles moved to strike the words “or portion thereof” from Note 3. Motion died due to lack of a second. Upon inquiry regarding Notes 12 and 3, Mr. Elias advised the container placement fee is \$5 (Note 12), and explained unknown circumstances affecting manpower time and verified documentation is recorded by the driver (Note 3). Main motion as

amended carried. Voting “yes” -- all members of the governing body with the exception of Ms. Williams voting “no”. (#3982)

There being no further business to come before the governing body, the meeting was officially adjourned at 8:08 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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